

AGREEMENT OF LEASE BETWEEN THE TENANT AND BLUE SPACES

1. DEFINITIONS AND INTRODUCTION pre-selected

The “**Tenant**” means the person or entity who entered into this lease agreement by either:

- Providing its details on the Sign Up or Create Account page of the Blue Spaces website and consented to the conditions of this agreement by ticking the relevant contractual tick boxes on the web site, or alternatively,
- provided its name and signature on the last page of this agreement of lease, and on the Schedule of the agreement of lease;

and in the instance where a natural person acts on behalf of a Tenant to enter into this lease agreement, such person hereby warrants that he/she is fully mandated to do so.

“**Blue Spaces**” means Pruzomate (Pty) Ltd, Reg nr 2021/112039/07

“**Facility**” means the Property along with the collection of Rentable Space(s) and services at the Property;

“**the Property**” means the erf and improvements situated at 21 Conradie Crescent, Asla Park, N2, Strand;

“**Rentable Space(s)**” means warehouse/storage unit(s), parking bay(s), office(s) or boardroom(s) that can be rented by tenants for a fixed period, or on a month to month basis;

The Tenant wishes to rent one or more such Rentable Space(s).

2. INITIAL OCCUPATION AND ACCESS TO RENTAL SPACE(S) BY TENANTS

Tenants are required to apply for, and complete a lease agreement, either on-line (any time), or at the Facility, during office hours. Blue Spaces will only agree to the lease agreement and grant beneficial occupation after:

- **a signed Agreement of Lease and the relevant FICA documentation have been received and**
- **the Tenant credit status was positively verified by Blue Spaces, and**
- **payment of a Deposit and the First Period Rental have been received in the bank account of Blue Spaces**

Once beneficial occupation has been granted, **access to rented units will thereafter be during normal business hours**, although arrangements may be made to gain access outside these hours. Blue Spaces will try to provide notice of changes in access hours by means of notices at the reception area, but Blue Spaces reserves the right to change access hours to other reasonable times at any time without any prior notice. Blue Spaces staff reserve the right to issue directives as to who may gain access, without incurring any civil liability.

The Tenant undertakes to accept the directives of the Blue Spaces staff on duty and/or any on-site directives provided by means of signage. A call out fee will be applicable should the Tenant require emergency access to office staff, outside business hours. **The Tenant or its employees, visitors or suppliers, will be granted access to the Facility by means of physical keys, tags, cards, PINS, or smart phone software based keys or credentials (“the Keys”), as the case may be.** Although Blue Spaces, or its agents and contractors in this regard, will take due care to protect the integrity of the Keys supplied, Blue Spaces gives no guarantee or makes no claim that such Keys may not be compromised. The Tenant uses the Keys at his/her own risk. In the instance that Keys are compromised, Blue Spaces, its employees, directors, agents or contractors will not be liable for any damage, loss or theft of the Tenant’s goods. **Warehouse/storage Rentable Spaces are fitted with hasps and the Tenant may lock the warehouse/storage unit with its own padlock.**

Under no circumstances will Blue Spaces or its employees receive or dispatch goods or consignments on behalf or as agents of the Tenant.

The Tenant may be obliged to purchase a non-refundable access tag. It is the Tenant’s responsibility to keep the access tag safe.

3. PAYMENT OF RENTAL AND DEPOSIT

The **FIRST PERIOD RENTAL** and the **DEPOSIT** inclusive of VAT is due for payment by the Tenant on signature by both parties of the Agreement of Lease. Thereafter rent is payable in advance on the first day of each month – i.e. on a calendar month basis. The FIRST PERIOD RENTAL is usually the Rental for one calendar month (i.e. occupation starts on the 1st of the month), but a Pro-rata Rental amount will apply, in the instance where a tenant move-in on any date after the 1st of a calendar month; such Pro-rata Rental amount will be calculated by applying a daily rate (based on a full year occupation), to the number of days in the pro rata period. Should the Tenant be moving in on any day before the monthly invoice date (currently the 20th day of the month), the FIRST PERIOD RENTAL will be the Pro-rata Rental amount. Should the Tenant move in after the monthly rental invoice date (20th) the FIRST PERIOD RENTAL payment amount will include the Pro-rata Rental amount for the remaining days to the end of the month, plus the full monthly rental of the next calendar month.

Payment by means of electronic transfer (EFT) is recommended and preferred, however payments can also be made in cash or credit/debit card at any Blue Spaces facility, bank or on the Blue Spaces website. EFT Payments should be clearly referenced with the applicable Tenant name and account number. Monthly statements and tax invoices are sent to the Tenant on request only.

The Deposit may be appropriated by Blue Spaces against any amounts whether liquid or illiquid which may be outstanding at any time during this lease or any other liability of whatsoever nature for which the Tenant is responsible, including damages arising on the termination or expiry of this lease. In the case of such appropriation, the Tenant shall pay on demand to Blue Spaces the amount necessary to restore the deposit to its original sum. The deposit shall be retained, interest free, by Blue Spaces or its agent until after the Tenant has vacated the Rentable Space(s) and a complete discharge of all the Tenant's obligations to Blue Spaces arising from the lease.

4. AUTHORISATION TO PERFORM CREDIT VERIFICATIONS

The Tenant authorises Blue Spaces and its agents to obtain credit verifications, as it deems fit, with respect to the Tenant, from TPN Group (Pty) Ltd ("TPN") or any other registered credit bureau, at any given time before, or, during the Lease period, or, until all debts have been settled in full. The credit verification consists of a credit report(s), including but not limited to ID and bank number verifications, previous lease payment patterns, deeds, notarial bonds, recent Civil court records, recent defaults, and credit score cards from TPN or from any other registered credit bureau. **The Tenant consents that Blue Spaces may convey the Tenant's information i.e. its name, profile details, credit behaviour, lease payment adherence patterns, indebtedness, whereabouts and creditworthiness, on a monthly or other frequent basis, to TPN or any other registered credit bureau, and that the information may be accessed by other users of the TPN credit verification database or that of any other registered credit bureau, and, that the last mentioned institutions may relay the Tenants information to other credit bureaus. The Tenant further consents to the receipt of monthly feedback (currently via SMS), with respect to the Lease payment adherence pattern, in the instance where Blue Spaces conveys such information to TPN.**

5. CONDITIONS RELATED TO MOVING IN AND VACATING

The Tenant may rent a Rentable Space for a minimum period of one month. Blue Spaces will endeavour to have units available on the move in date as agreed to enable the Tenant to move in. Should the previous tenant not have vacated his unit on time, Blue Spaces will endeavour to provide alternative Rentable Space(s) for occupation at the Facility or its other facilities to accommodate the Tenant as soon as possible, but Blue Spaces will not be liable for damages, consequential damages or other rights of action. Failure to vacate the unit pursuant to any notice being given will constitute a material breach of this agreement of lease and all costs and damages of whatsoever nature incurred by Blue Spaces as a result thereof, including where a future Tenant is not able to take occupancy of the noticed Rentable Space(s) will be for the Tenant's account. **A minimum of ONE (1) CALENDAR MONTH WRITTEN NOTICE, by either the Tenant or Blue Spaces, is required to terminate this agreement, unless the lease was signed with a pre-selected Move-Out Date, which date may be changed provided one month's written notice is given by the Tenant. The Tenant and Blue Spaces agree and acknowledge that this Agreement is concluded on a month to month basis and that it is not a fixed term agreement. The Tenant must vacate his/her Rentable Space(s) not later than 12H00 midday on the appropriate date and should ensure that the Rentable Space(s) is left clean and free of any waste material.**

If any waste material or other items are left in a vacated unit, the cost of removing such items will be at the Tenant's expense. The Tenant may not give away or donate unwanted or other goods to any Blue Spaces employee under any circumstances whatsoever. Rentable Space(s) may only be vacated during office hours unless prior arrangements have been made. Should the Tenant fail to vacate the Rentable Space(s) or return Keys or remove any locks on the last day of his notice period (i.e. at the end of the applicable month), the rental agreement shall automatically be renewed for another calendar month. The Tenant hereby agrees that no pro-rated rental refunds will be made if the Tenant vacates the Rental Space(s) prior to the Tenant's notice/vacating date.

6. INSURANCE

The Tenant acknowledges that Blue Spaces does not insure the contents of any Rentable Space(s) and that it does not carry any independent insurance which covers any loss in any way whatsoever that the Tenant may have or suffer by renting or using a Rentable Space(s) at Blue Spaces. **Tenants who do not have household and/or business insurance to cover the Tenant and/or his goods/contents located at Blue Spaces are strongly recommended to insure their goods whilst in storage, and/or located at Blue Spaces.** The Tenant hereby declares that the value of the goods stored shall be deemed not to exceed a total actual value of R5, 000.00. If the Tenant stores goods at an actual value of more than R5, 000.00, the Tenant declares that he has arranged appropriate insurance or alternatively accepts any risk of loss. Blue Spaces will make every effort to protect and secure all property belonging to the Tenant.

7. OWNERSHIP, SURETY AND RISK

The Tenant warrants that he/she is the **lawful owner/possessor** of all property stored and/or located at Blue Spaces. **The natural person signing this contract on behalf of the Tenant, as recorded in the 4th paragraph of the Schedule, hereby declares, and fully indemnifies Blue Spaces against any claim to the contrary, that he is duly authorised by the Tenant, be that a legal or natural person or persons in partnership or marriage, to declare that the property stored or placed, belongs to the Tenant, that he is duly authorised to store and control access to the stored property, that he is personally liable as co-principal debtor for all the obligations of the Tenant and that he chooses as his 'domicile' the same address as the Tenant. It is the Tenant's responsibility to notify Blue Spaces in writing of any change in Tenant details or any persons that may represent the Tenant in any way.**

The Tenant specifically acknowledges that Blue Spaces has adequate security and has taken all necessary precautions regarding all other potential risks including but not limited to theft, fire and water damage and that all goods are stored at the sole risk of the Tenant. The Tenant hereby expressly releases and indemnifies Blue Spaces, its employees, directors, and agents from any liability for any losses and/or damages suffered, in or about the Rentable Space(s) unit, caused by inter alia fire, theft, water, rainstorms, tornado, explosion, riot, rodents, civil disturbances, insects, sonic boom, land vehicles, unlawful entry or any other cause whatsoever, nor shall Blue Spaces, its employees or directors be held liable to the Tenant's suppliers, employees, visitors, guests, invitees, agents or contractors while in or about the Rentable Space(s) unit and anywhere else on the Facility where the Tenant rents, and the Tenant's indemnity extends to any claims by such persons.

8. NATURE OF GOODS

The Tenant undertakes not to store or place in any Rentable Space(s), anything that may constitute a fire hazard, any explosives, unstable chemicals, any addictive substances, or any items which may have an offensive odor, anything that may be a nuisance to other Tenants or damage the Rentable Space(s) facility in any way or enhance any of the risks against which the building is insured or anything that contravenes the zoning and building regulations. The Tenant will ensure that when goods are presented for storage it will be securely packed or bottled and in such condition not to cause any damage or injury to Blue Spaces or any other property, whether by spreading damp, infestation, leakage or the escape of fumes or substances. Blue Spaces reserves the right to call upon a Tenant to remove any items of this nature found to be in a Rentable Space(s). If for any reason, Blue Spaces deems it necessary to inspect the unit, the Tenant consents to Blue Spaces opening a Rentable Space(s) for purposes of inspection, break any locks of the Tenant if required to gain access, and taking whatever remedial action it may deem appropriate.

The Tenant hereby acknowledges that Blue Spaces has no knowledge or record of the goods stored or placed, its nature, condition or state of repair and does not inspect the goods upon arrival. The Tenant hereby declares

that he does not store any personal, private or 'protected information' (i.e. 'protected information' is information that is prescribed by any South African regulation to be archived for a specific period that coincides with the period of storage at Blue Spaces). Should the Tenant store such private or protected information the Tenant hereby indemnifies Blue Spaces against any liability should the information be lost or destroyed, either through the Tenant or Blue Spaces' actions or negligence or through an act of God or through any other risk being realised inclusive of but not limited to fire, water or theft. The Tenant/ also indemnifies Blue Spaces, should the Tenant not pay his rental and/or abandon the Tenant Space and Blue Spaces auctions the content of the Tenant Space in terms of clause 19 (that deals with Overdue accounts and collections).

9. CONDITIONS OF USE, AND ALTERATIONS

The Tenant may use the Rentable Space(s) unit for low risk storage and warehousing purposes and for conducting business accordingly. The Tenant agrees that it will not use the Rentable Space(s) for living accommodation. The Rentable Space(s) units may not be fitted with fittings and attachments that require nails, bolts, screws or adhesives in/on walls, floors or ceilings. **Alterations are not permissible** and the Tenant shall not have any claim for compensation for any improvement on the Rentable Space(s). The Tenant is **not allowed to cut any locks** on site for any reason whatsoever and are not allowed to sublet, cede, assign or re-let the Rentable Space(s) unit to any third party. **The Tenant shall be liable for any damage to the Rentable Space(s)** and the Facility, directly caused by the Tenant, his agents or any person brought onto the site by the Tenant whether the damage caused was intentional or unintentional. The Tenant acknowledges and agrees that Blue Spaces is the manager of the Facility, and may impose at any time any rule to prohibit or restrict activities, manage the driving or parking of vehicles, security or the utilization of the Facility, to ensure the Facility can be properly, cost-effectively and safely used by all Tenants.

10. RENTABLE SPACE(S) FIT FOR PURPOSE

Blue Spaces shall not be deemed to have warranted or represented to the Tenant that the Rentable Space(s), rented by the Tenant is fit for the purpose the Tenant intended to utilize the Rentable Space(s) for. **It is the responsibility of the Tenant to ensure that the Rentable Space(s) and the locality of the Rentable Space(s) on the Facility are fit for the intended purposes of the Tenant.**

Blue Spaces accepts no responsibility for the accuracy of the sizes of any Rentable Space(s) as the presented or advertised sizes are approximates based on the as-built center lines of walls, in accordance with general self storage practice.

11. CONDITION OF RENTABLE SPACE(S)

Should the Tenant on taking occupation of the Rentable Space(s) find any of the keys, locks, doors, windows, wash-basins, taps, sanitary conveniences, drains or down-pipes, ceilings, roof covers, steel structures, electrical or other equipment of the Rentable Space(s) in disrepair, or infested by pests, **the Tenant shall notify Blue Spaces in writing of all defects within fourteen (14) days of taking occupation and Blue Spaces shall take all reasonable steps to repair such defects as soon as possible.** Should the Tenant fail to give such notice to Blue Spaces the Tenant shall be deemed to have acknowledged that on taking occupation of the Rentable Space(s) the aforesaid items were received in good order and condition. The Tenant shall keep and maintain the Rentable Space(s) in a clean, sanitary, good working order and safe condition. The Tenant shall keep and maintain the Rentable Space(s) unit in accordance with all directions, rules and regulations of Blue Spaces at the sole cost and expense of the Tenant, and the Tenant shall comply with all requirements of law affecting the Rentable Space(s) and any appurtenances thereto

If the Tenant fails to leave the Rentable Space(s) unit in the condition contemplated in the sub-clause above at the expiration or prior termination of this Agreement of Lease or the eventual vacation thereof, Blue Spaces may have the necessary repairs affected or other work done to restore the Rentable Space(s) unit to the condition contemplated in the above sub-clause. The Tenant shall forthwith on demand pay to Blue Spaces all costs incurred or which may have to be incurred in terms of this sub-clause. A certificate signed by an authorised representative of Blue Spaces stating the amount of the costs aforementioned (or the anticipated costs to be incurred), shall be prima facie proof of the amount due and payable by the Tenant to Blue Spaces.

12. WI-FI INTERNET SERVICES

Blue Spaces provides Wi-Fi and internet access to the Tenant at no additional cost. **The Tenant undertakes to use the Wi-Fi service solely for purposes of the business declared by the Tenant in clause 2 of the Schedule of the Lease.** The Wi-Fi services are not intended for use by the Tenant or his Associates (i.e. employees, suppliers, guests or visitors) for private purposes and the Tenant undertakes not to enable these Associates to access the Wi-Fi services for private purposes. Blue Spaces reserves the right to terminate or start charging the Tenant a fee in the sole discretion of Blue Spaces, should the Wi-Fi use of the Tenant become excessive in the sole discretion of Blue Spaces. Blue Spaces also reserves the right to vary the terms by which Wi-Fi and internet access is provided and also the speed and amount of data each Tenant has access to.

13. USE OF SOLAR POWER, UTILITY AND PRE-PAID SERVICES

Blue Spaces provides Solar Power to Essential Circuits in the Rentable Space(s) where applicable and to the Facility. Essential Circuits include all outdoor and indoor lighting, alarms, gates and certain power plugs (i.e. Essential Circuit Plugs). **Essential Circuit Plugs are marked as such in the Rentable Space(s), are limited to 2 Amperes, and are made available to the Tenant during daylight hours only, for the express and sole purpose of providing power to computers, servers, lap tops, screens, printers, mobile phones, and related LOW CURRENT computer or electronic equipment or devices requiring LESS THAN 2 AMPERES.** The tenant hereby agrees that he/she will not use, or attempt to use, Essential Circuit Plugs for any other use, equipment or devices unless approved by Blue Spaces, or use the Essential Circuits Plugs to power any equipment or device outside of daylight hours, or misuse other Essential Circuits for any other purpose it was intended for. Fridges, freezers, heaters, microwave ovens, kettles, coffee grinders/machines, toasters, fryers, welding machines, drills, grinders, hydraulic equipment, electric saws, and the like, are all examples of equipment that are expressly forbidden to be connected to Essential Circuit Plugs during any time of the day. Should a Tenant be found to breach the conditions of this clause 13, or misuse any Essential Circuit, it will be deemed to be a material breach of the Lease and therefore deemed as an immediate cancellation of the Lease and the Tenant will be required, at the discretion of, and notice by Blue Spaces, to vacate the Rentable Space. In addition, any expense required to repair any damage (electrical or otherwise including fire damage), caused by a breach by the Tenant of the conditions of this clause 13, will be for the account of the Tenant.

A certain proportion of the power generated by the solar power installation is made available to certain applicable Rentable Space(s), and is provided at no additional cost to the Tenant. Power generated by the solar installation varies due to various weather, seasonal and other circumstances. Blue Spaces reserves the right to alter the proportion of solar generated power that is made available at no additional cost to the Tenant, from time to time and to recover such electricity supply costs from the Tenant should power or additional power be required from alternative sources such as Eskom or a diesel generator.

The Rentable Space(s) are intended for low risk storage and business use and the installed capacity of the water- and electricity systems (inclusive of lighting) were designed and installed with this purpose in mind. The Tenant undertakes to use the Rentable Spaces accordingly and not to conduct business outside of the stated purposes, inclusive, but not limited to heavy manufacturing, welding, water purification etc.

Where electricity and water are supplied by utilities, such as the local authority and or Eskom, in a Rental Space(s), the Tenant can avail himself of these services by means of the installed pre-paid meters, and making the necessary pre-payment. The Tenant undertakes to not circumvent or manipulate any pre-paid meter or attempt to do so in any way. Any credit loaded by the Tenant onto prepaid metering services such as water and or electricity that is not used by the Tenant on the move-out date or after the vacating date of the Tenant, is forfeited and Blue Spaces, or any of its current or future tenants, will not be liable to give any refunds to the Tenant.

14. BOARDROOM USAGE

Blue Spaces provides access to the Tenant to designated Boardroom(s) where the first two hours (or other period as determined from time to time) used in a month, is free and thereafter charges apply on a time basis. This service shall not be misused in any way by the Tenant or his associates, staff and or visitors. Blue Spaces reserves the right to terminate the provision of the two free hours at any time in the sole discretion of Blue Spaces. Blue Spaces also reserves the right to vary the terms by which boardroom access is provided. Blue Spaces

does not guarantee availability of the boardrooms. **The Tenant needs to book the boardrooms in advance and boardroom bookings are allocated to Tenants on a first come first serve basis.**

15. TENANT PARKING

The Tenant undertakes to cause and permit vehicles belonging to or used by it or its directors, principals, employees, suppliers, visitors or invitees to be parked only on its designated parking areas, and ensure and cause that no parking shall be permitted in driveways (and the entrances thereto or the exits therefrom), yards, delivery areas, or the pedestrian entrances to the Facility or other surrounding Rentable Spaces not rented by the Tenant

The Tenant shall not place, or permit to be placed, any sign, object or any obstruction whatsoever in or on the driveways, loading zones, parking area and/or arcade which may in any way impede free access or exit to the driveways, loading zones, parking areas and/or arcade. The loading zones shall be used solely for the loading or unloading of goods. Vehicles may not be parked on a loading zone unless goods are being loaded or unloaded.

The Tenant or his Employees, Suppliers, Visitors or Invitees shall park every vehicle on/in the parking space at his own risk and Blue Spaces shall not be liable for any loss or damage whatsoever (whether due to Blue Spaces' negligence or not) to a vehicle, its accessories or contents, while it is parked on the Facility. Blue Spaces shall furthermore not be liable for any personal accident or third party claims which may arise from the use by the Tenant of the parking areas in/on the Facility. Blue Spaces shall be entitled to charge the Tenant a penalty rate of R500 for each parking violation and the Tenant hereby authorizes Blue Spaces to deal with any parking violation in any manner it sees fit.

16. SIGNAGE

The Tenant shall be entitled to have one sign or other form of identification fixed to the main entrance of the Rentable Space(s) in a space designated by Blue Spaces and of a maximum size as determined by Blue Spaces. Blue Spaces shall affix such sign or other form of identification at the expense of the Tenant. The sign shall be the property and the responsibility of the Tenant. The Tenant shall comply with any laws, regulations, and by-laws relating to the display of the sign it wishes to have affixed to the main entrance of the Rentable Space(s).

The Tenant may affix signage to direct operational activities of the Tenant in his Rentable Space(s), provided the Tenant shall obtain Blue Spaces' prior written approval of size, design, colouring and final locations of the signage, before installing the same. Cost of directive signage will be for the Tenant's account. The Tenant shall also be entitled to display its name on a name-plate, at the main entrance to the Facility if Blue Spaces provides such a feature, listing all Tenants of the Facility, provided that the name is displayed according to the material, font, colour and size specifications of Blue Spaces. Blue Spaces shall affix such name-plate at the cost of the Tenant.

Should the Tenant place or affix any sign in or on the Rentable Space(s) or anywhere in or on the Facility, without the prior written consent of Blue Spaces being had and obtained, Blue Spaces has the right, without prejudice to any other rights it may have in terms of this Agreement of Lease, to remove same at the expense of the Tenant.

The Tenant shall maintain and where necessary replace any signage in order to keep it in good order and repair at all times, failing which Blue Spaces shall be entitled to attend to any deteriorating signage and any costs and administration fees incurred shall be for the Tenant's account

All signage shall be removed by the Tenant upon the expiration or earlier termination of this lease and any damage caused to the Rentable Space(s) as a result of any such removal shall be made good by the TENANT at the Tenant's expense.

17. ACCESS TO RENTAL SPACE(S) BY BLUE SPACES

Should Blue Spaces deem it necessary to inspect the Rentable Space(s) or carry out maintenance and alterations to it or any other Rentable Space(s) or part of the Facility, the Tenant permits Blue Spaces and its agents and contractors to enter the Rentable Space(s) and if necessary break the lock to gain access, provided that Blue Spaces gives the Tenant 7 days' notice. At any time without prior notice Blue Spaces may gain access

or break locks to the Rentable Space(s) under the following conditions; a) if Blue Spaces reasonably believes that the Rentable Space(s) contains prohibited items as listed in the section "Nature of Goods" b) is required to do so by the Police, Fire Services, and Local Municipality or by a Court Order c) Blue Spaces believes it necessary in an emergency or d) to prevent injury or damage to persons or property.

In the event of fire or flood or similar incident or occurrence Blue Spaces shall do everything possible to notify the Tenant as soon as possible. Blue Spaces shall thereafter give the Tenant 7 days' notice to remove the goods. Should Blue Spaces have an alternative Rentable Space(s) available of similar size and the Tenant agrees to move to the alternative Rentable Space(s) the rental agreement will still be in full force and only the unit number will be varied. If the Tenant does not move the goods by the specified date, Blue Spaces and its agents and contractors may enter the Rentable Space(s) unit and do so at the Tenant's own risk.

If the Rentable Space(s) or the Facility is destroyed or damaged to the extent that it can no longer be beneficially occupied by the Tenant this agreement shall automatically terminate when that happens unless the parties agree otherwise in writing.

18. RISK OF USING THE FACILITY

The Tenant uses the Rentable Space(s) and the Facility, inclusive of but not limited to equipment, doors, gates, machinery, elevators, lifts, trolleys, roads and floor surfaces at their own risk and hereby declare that they have observed and familiarised themselves of all the potential risks in using the facilities. **The Tenant declares that he made himself aware of all on-site signage and directives.** The Tenant hereby indemnifies Blue Spaces, its employees and directors against any claims which may result from the Tenant, his Employees, Suppliers, Guests, Invitees, agents or contractors, or any person brought onto the Facility or Rentable Space(s) by the Tenant or brought onto the Facility or Rentable Space(s) by the activities of the Tenant, using the Facility or Rentable Space(s) and suffering bodily harm or death in any way.

Blue Spaces may provide an alarm system, access control systems, electric fences and/or remote controlled electric lock systems to the Facility and its perimeter access points, as the case may be, for the convenience of the Tenant, but Blue Spaces does not make any promise, claim or presentation or provide any guarantee or warranty that these systems are adequate to protect the Tenant against any risks or mitigate any risks or that it will continuously be in working order and the Tenant hereby indemnifies Blue Spaces, its employees and directors against any claims related to these systems and its purported purposes to prevent or enable access or to prevent theft or damage. **The Tenant can elect to install an alarm system to his Rentable Space(s),** provided that the Tenant shall obtain prior written approval from Blue Spaces and provided that the alarm system becomes a fixed installation that will remain installed in the Rentable Space(s) on termination of this agreement. **The Tenant can elect to contract a security vendor to respond to the activation of his alarm system, provided that the security vendor is a Blue Spaces pre-approved security vendor, that has been granted access to the Blue Spaces facility,** and where applicable, the encircling estate or security zone, accommodating the Blue Spaces Facility.

The Tenant indemnifies Blue Spaces its employees or Directors, against any claims related or originating from any protest, strike, picketing, nuisance, unlawful occupancy, and any disturbance carried out by any Entrant, Tenant, related parties and/or third parties on the Facility.

19. OVERDUE ACCOUNTS AND COLLECTIONS

The terms of this clause is in addition to and without prejudice to all or any rights or remedies in law. Interest on accounts, overdue for more than 30 days, will be charged at the prime rate of Nedbank plus 2%. **All costs to recover overdue amounts inclusive but not limited to legal costs (at attorney own clients scale) will be for the account of the Tenant.** The Tenant consents that, until all outstanding amounts are paid, **Blue Spaces has a lien over all goods stored or placed in the Rental Space(s).** All payments made to Blue Spaces shall first be applied to all administrative charges and costs (such as Lock out and Auction fees) before the balance shall be applied to accrued or unpaid rental. The Tenant will pay Blue Spaces' reasonable costs incurred in administering the debt collection and sale process described below. These costs will include (without limitation) auction costs, removal costs, cleaning costs, and charges for Blue Spaces' related administration time. A partial payment of amounts in arrears will not stop fees or charges being incurred or official procedures being implemented. **Should the Tenant fail to pay rentals due, he/she hereby consents to the following:**

- Blue Spaces is relieved of its duty howsoever arising in respect of the Goods and the goods are held solely at the Tenant's risk and **Blue Spaces shall be able to immediately exercise its lien.**
- **If an account is overdue by the 7th day of a month: Blue Spaces will revoke the Tenant's access Keys to the facility or Rentable Space(s),** whatever the case may be, and thereby prevent the Tenant from gaining access to his Rentable Space(s) until full payment is received,
- **If an account is still overdue by the last day of a month (i.e. in arrears for one month): Blue Spaces will take possession of the Rentable Space(s) and contents,** and/or breaking any Tenant lock and replacing it with or overlocking with a Blue Spaces lock, as the case may be, **to 'LOCK OUT' the Tenant from his/her Rentable Space(s).** Lock-out status of The Tenant can only be altered during office hours after payment reflects in Blue Spaces' bank account. A lock out fee will be payable. The lockout fee will be charged for every month that the Tenant is in arrears. Blue Spaces reserves the right to amend the lock out fee from time to time. If the Tenant has paid to the satisfaction of Blue Spaces, access will be restored. In such an event it will be the Tenant's responsibility to replace the lock at the time of payment to ensure security of the Rentable Space(s).
- **after an arrears period of 45 DAYS; the Tenant hereby grants Blue Spaces the right TO DISPOSE OF SUCH GOODS** in any way, as the Tenant will be deemed to have abandoned his/her goods. The Tenant grants Blue Spaces the right to set off the proceeds from the disposal against unpaid rental, damage and/or other expenses incurred by Blue Spaces in terms of this authority. The Tenant furthermore authorises Blue Spaces to open the Rentable Space(s), inspect it and move the goods to another store or to an auctioneer as part of the disposal procedure and to make the Rental Space(s) available for rental to third parties. The Tenant agrees to be liable for costs, damage or losses as a result of the removal. Before Blue Spaces sells the Tenant's goods, Blue Spaces will give the Tenant notice in writing of the amount in default and the intention to sell the goods. Blue Spaces does not agree to give the Tenant any further notice of any intended sale. The proceeds of the sale will first be used to cover any administrative costs such as lock-out fees and auction costs and then be allocated towards outstanding rental. If the proceeds are insufficient to discharge any or part of the costs of the sale incurred, the Tenant is still liable for the outstanding amount. If the goods cannot reasonably or economically be sold or they remain unsold despite Blue Spaces' best efforts, the Tenant authorises Blue Spaces to treat them as abandoned by the Tenant and to destroy or otherwise dispose of them. In addition to the above the Tenant agrees to pay a penalty of 30% of the outstanding rental. For the purpose of this process, the Tenant agrees to choose his 'domicile' at the rented Rentable Space(s) unit. The Tenant agrees that written notice by e-mail to the e-mail address specified in the Schedule to this Lease and updated from time to time by the Tenant will be deemed to be a valid written notice for any notice in terms of this agreement.

20. ADHERENCE TO LAWS AND CONDUCT

The Tenant undertakes to and shall be obliged to timeously obtain, maintain and renew all necessary licenses, permits or other necessary consents to enable it to conduct its business on or from the Rentable Space(s). Blue Spaces does not warrant that the Rentable Space(s) are fit for the purpose for which they are let or that the Tenant will be granted a license in respect of the Rentable Space(s) for the conduct of the business of the Tenant, or that any license granted will be renewed or should legislation require a license at any time after the signing of the lease, that such license will be granted or renewed, and there shall be no obligation on Blue Spaces to do any work or make any alterations or repairs to the Rentable Space(s) to comply with the requirements of any licensing authority. A refusal of any license, which may be required, shall not constitute a valid ground for the cancellation of this lease. Blue Spaces shall not be obliged to do anything in order to comply with the requirements of any licensing, fire, public health, factory, food safety or other authority to enable the Tenant to obtain any license required to conduct its business. **The Tenant shall be liable to ensure that his rented Rentable Space complies with regulations set out in the Occupational Health and Safety Act No. 65 of 1993** as amended from the commencement date. The Tenant shall comply with all laws, by-laws and regulations relating to the Tenant and/or his activities which may affect fellow occupiers of Rentable Space(s) including:

- comply with the Occupation Health and Safety Act, No 85 of 1993 as amended,
- the Environment Conservation Act No 73 of 1989, as amended and Consumer Protection Act 68 of 2008 where applicable to storage and disposal of waste;
- place or storage of any goods/objects which will exceed the load carrying capacity of the floor of the Rentable Space(s);
- Not overload the electricity supply to the Rentable Space(s)
- Cause obstruction whilst loading goods at any entrance or exit to the Leased Rentable Space(s) or Facility;

- Manage noise levels to an adequate level to not be a nuisance to other Tenants in and around the Leased Rentable Space(s).

The Tenant shall not contravene or permit the contravention of any of the conditions of title under which the property is held by Blue Spaces or any of the provisions of the town planning scheme or building regulations applicable to the property.

Environmental laws:

Environmental Contaminant means all pollutants (including vibration, noise, electricity, heat, or other radiation) or contaminants (including any chemical, biological, industrial, radioactive, dangerous, toxic or Hazardous Substance, water, or residue, whether in solid or liquid forms or a gas or vapour) and any modified organisms that may be harmful to or contaminate the Environment. Environmental Law means any applicable law or regulation which relates to the pollution or protection of the Environment, harm to or the protection of human health, the conditions of the workplace; or the generation, handling, storage, use, release, emission, or spillage of any substance which, alone or in combination with any other, is capable of causing harm to the Environment, including, without limitation, any waste. Hazardous Materials means any hazardous substance or any pollutant or contaminant, toxic or dangerous waste, substance, or material, as defined in or regulated by any applicable law from time to time, including friable asbestos and poly-chlorinated biphenyls.

The Tenant shall not cause or permit any contamination on the Rentable Space(s) or the Facility or any surrounding properties from any Environmental Contaminant and indemnifies Blue Spaces against any costs related to this caused by the Tenant. The Tenant shall not utilise Hazardous Materials in their operations and shall possess all Authorisations required to conduct the Tenant's operations and indemnifies Blue Spaces against any costs related to this caused by the Tenant. The Tenant shall ensure that there is no release of Hazardous Materials in, on, under or from the Rentable Space(s) unit arising from the Tenant's operations or arising from any Tenant's operations, which have not been fully remediated in accordance with Environmental Laws or that will be remediated in accordance with any remediation plan and indemnifies Blue Spaces against any costs related to this caused by the Tenant.

21. FORCE MAJEURE

In the event that BLUE SPACES is delayed or hindered in or prevented from doing or performing any act or thing required hereunder by reason of strikes, lockouts, casualties, Act of God, pandemics, causus fortuitis, labour difficulties, inability to procure materials, failure of power, governmental regulations, riots, insurrection, war or other causes beyond the control of Blue Spaces, then Blue Spaces shall not be responsible for such delays and the doing or performing of such act or occurrence shall be excused for the period of the delay. Under the circumstances recorded in this clause, the Tenant will remain liable for performance under this Lease, unless the parties agree otherwise at the time.

The Tenant shall have no claim whatsoever, whether for damages or remission of amounts due or cancellation of this lease against Blue Spaces, nor be entitled to withhold or defer payment of amounts due by reason of any suspension or interruption in the supply of water, gas, electricity, air-conditioning or heating (howsoever such suspension or interruption may arise) or by reason of any amenities in or on the Rentable Space(s) or the Facility being out of use or out of order for any reason whatsoever and whether or not such out of use or out of order arose as a result of Blue Spaces' or other Tenants' actions or omissions, or an Act of God, for any period whatsoever.

22. MEDIATION

Any dispute between Blue Spaces and a Tenant will firstly be referred to mediation before Nico le Roux of Miller Bosman le Roux Attorneys in Somerset West, who shall determine the mediation process. The costs associated with the mediation shall be shared equally by Blue Spaces and the Tenant. Should mediation be unsuccessful, then Blue Spaces shall be entitled in its sole discretion to refer the dispute to arbitration and the Tenant shall then be obliged to participate in such arbitration. The arbitration shall be held in Somerset West before a single arbitrator agreed to between the parties. The arbitrator shall be a practicing attorney with not less than 5 years post admission experience. Should the parties be unable to agree to the arbitrator within 5 business days since Blue Spaces notified the Tenant of its election to refer the dispute to arbitration, then the chairperson for the time being of the Western Cape Legal Practice Council shall nominate an arbitrator. The arbitrator shall decide on the procedure to be followed, and shall aim to have the process concluded within one calendar month from his or her appointment. Should Blue Spaces elect to have the dispute referred to

arbitration, then both parties shall still have the right to approach the courts for urgent relief. The parties agree to the jurisdiction of the Magistrates Court in this regard

In the event of an urgent application to secure the lien of Blue Spaces, Blue Spaces shall have the right to approach the Magistrate's Court which shall have jurisdiction in the matter.

23. CESSION & RELATED MATTERS

In the event of Blue Spaces ceding, transferring or delegating its rights and/or obligations to a third party, references to Blue Spaces shall then be construed as references to such third party.

24. SEVERABILITY

Each clause or part of a clause in this agreement is separate and severable from the agreement (unless severing would render this agreement unlawful or it would not be reasonable to do so having regard to the price, the clause or the agreement as a whole). Should any clause or part thereof be unenforceable, it will not affect the enforceability of the rest of the agreement (unless severing would render this agreement unlawful or it would not be reasonable to do so having regard to the price, the clause or the agreement as a whole).

25. PERSONAL INFORMATION

The Tenant and any natural person signing this agreement on the Tenant's behalf hereby agree to provide its/his/her personal information ("information") to Blue Spaces on the express understanding that

- This constitutes the consent as is required under the Protection of Personal Information Act 4 of 2023 ("POPIA")
- Blue Spaces' staff will have access to the information which have been furnished to them in order to provide the services envisioned in this Agreement as well as matters ancillary thereto.
- Blue Spaces is authorised to release the information to the South African Revenue Services or to any other entity towards which Blue Spaces has a statutory obligation to do so in order to satisfy certain legal and regulatory requirements.
- Blue Spaces may also use the information for the following purposes:
 - for audit and financial statement purposes;
 - to maintain the recorded information of the Tenant;
 - to carry out the provisions of this agreement or respond to any disputes that may arise pursuant to this agreement (including but not limited to, disclosing such information to any third party working on Blue Spaces' behalf and to credit bureaus and other businesses that provide credit or rental history information about the Tenant;

26. VARYING TERMS

In the event of Blue Spaces wishing to vary a term or condition of this agreement, inclusive of but not limited to pricing, Blue Spaces shall give written notice of not less than 30 days. The changes to the agreement will be binding on the Tenant unless the Tenant, within 7 days of receipt of said notice, advises Blue Spaces in writing that the variation is not acceptable. Such non-acceptance of the amendment/s will be deemed to be the giving of notice to vacate the Rentable Space(s).

Blue Spaces reserves the right to cancel this contract, should the Tenant be in breach of any of its conditions.